Washington OSPI AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Human-Centered AI Guidance for K–12 Public Schools, Version 3.0 (Washington Office of Superintendent of Public Instruction, July 1, 2024)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Passages marked [graphic] come from two-column layouts whose plain text extraction interleaves the columns; they were reassembled in reading order, not copied from an image. Sample policies in Section 2 (pages 22–24) are model language the guidance offers to districts.

Executive Summary: In This Guidance (excerpt)

Source: page 6

[graphic] Guidance: Provides considerations for creating human-centered AI learning environments, implementing AI in student learning, and protecting sensitive and confidential data.

Understanding Artificial Intelligence (excerpt)

Source: page 7

It is the responsibility of the education community to carefully and strategically understand how these products work, what data is collected, and where information is sourced.

Key facets of these tools already apply to concerns such as student data privacy, plagiarism, cyberbullying, and digital literacy, and can be called out within existing and corresponding policies.

AI in Education: A Human-Centered Approach (excerpt)

Source: page 8

- Ensuring ethical, equitable, and safe use of AI by protecting the privacy and security of data, addressing potential biases and harms, and promoting digital citizenship and responsibility.

Potential Risks That Need to Be Mitigated When Using AI in Education (excerpt)

Source: page 10

- Unauthorized access to protected user information and unauthorized data collection

It is the responsibility of every parent/guardian, policymaker, teacher, administrator, and support staff member to ensure that the use of this transformative new technology and its future is regularly reviewed to ensure equity of access, data privacy, and safe and ethical usage are maintained at all levels.

Principles and Values: Safe and Secure

Source: page 11

Safe and Secure: Students should not be put at further risk by using AI nor should their personally identifying information be unlawfully shared.

Guidance: A Human-Centered Approach to AI (excerpt)

Source: page 12

- Ensuring ethical, equitable, and safe use of AI by protecting the privacy and security of data, addressing potential biases and harms, and promoting digital citizenship and responsibility.

Sensitive and Confidential Data

Source: page 13

Ensure that your LEA AI use complies with student/personal privacy and data protection laws. Be aware of and follow any age restrictions for the use of all AI tools and resources.

- Before sharing private data, ensure that the AI tool meets the following requirements:
- Family Education Rights and Privacy Act (FERPA) requires that schools not disclose personal identifying information of a minor or eligible student without express written consent of the parent or eligible student.
- Children's Online Privacy Protection Act (COPPA) requires schools to obtain parental consent before allowing students under 13 to use online services that collect, use, or disclose personal information.
- Children's Internet Protection Act (CIPA) requires that schools implement an internet safety policy that includes protective measures to block or filter access to obscene or harmful content.
- Have a clear understanding of your data collection processes. Update policies to include the use of and considerations for using AI.
- Give users options to opt-out or delete their data if they want.

Policy: Building Human-Centered AI Policies (excerpt)

Source: page 14

- **AI Inquiry and Input Review:** Require human input of data with clear mandates that staff and students should never input personal, sensitive, or confidential data, including any data related to student education records, into any AI system without first ensuring that the system meets FERPA, COPPA, and CIPA requirements. Emphasize the need for review prior to finalizing any information into a system that learns from data entered.

Policy: Updates for Existing Policies (excerpt)

Source: page 15

- **Data Collection:** Parents, guardians, and students must be informed of specific data collection activities or potential risk, where applicable, with consent required. All AI-driven data collection must adhere to local data protection regulations, best practices, and community standards.
- **Third-Party AI Tools:** The district's approved list of AI software and tools should always be reviewed and updated. Unauthorized AI software and tools (including updates) might not adhere to the district's data privacy standards and practices.
- **Personal Information:** Staff and students should never input personal, sensitive, or confidential data into any AI system without prior parental or guardian authorization, including any data related to student education records. Personnel must adhere to the FERPA, COPPA, and CIPA when entering information.

Policy Samples (excerpt)

Source: page 21

These samples illuminate approaches to harnessing AI's potential while addressing ethical, safety, and privacy considerations inherent in its use.

Sample Language for Responsible Use Policy: Inappropriate Use (Edmonds SD) (excerpt)

Source: page 22

In addition to those uses which violate this document (#), the following are prohibited uses of Artificial Intelligence:

- Use of Artificial Intelligence with confidential student or staff personal information.

Sample Student AI Code of Conduct (excerpt)

Source: page 23

- **Respect Others:** I will not use AI to harm, deceive, or disparage others. I will always respect others' privacy and dignity.
- **Protect Privacy:** I will be mindful of my own and others' privacy when using AI. I will not share personal information with AI without appropriate consent and understanding of how the data will be used.
- **Report Concerns:** I will report any concerns or potential breaches of this pledge to a teacher or school administrator immediately.

Sample Professional Ethics for Educators: Protect Student Privacy and Data

Source: page 24

- Establish safeguards to make certain that student data collected, used, and stored is secure and with appropriate consent.
- Confirm that any data collected does not violate current regulations relevant to education and student data privacy.

Considerations: When kids are not quite ready to speak up for themselves or handle AI tools alone, schools should establish strong partnerships with parents to proactively encourage the development of students' critical thinking skills. Together, parents and school communities should help kids understand how their data is collected and used by AI, whether it's at school, home, or even with toys meant for learning and fun. It's all about making sure kids stay safe and develop critical thinking skills around their personal data privacy.

Current regulations relevant to the use of AI in education (excerpt)

- FERPA - AI systems must protect the privacy of student education records and comply with parental consent requirements. Data must remain within the direct control of the educational institution.
- COPPA - AI chatbots, personalized learning platforms, and other technologies collecting personal information and user data on children under 13 must require parental consent.
- CIPA - Schools must ensure AI content filters align with CIPA protections against harmful content.

Section 3 Introduction (excerpt)

Source: page 28

Using AI also comes with risks that must be mitigated to protect student privacy, prevent biases and inequities, and embrace human intelligence and empowerment.

Local Education Agency Leaders (excerpt)

Source: pages 33–34

When educators and students are accessing AI tools, it is crucial that these tools protect student data and improve student outcomes while allowing the opportunity for increased efficiency and enhanced educational experiences.

AI Policies Review and Updates (page 33)

- [graphic] Encourage regular reviews and updates to LEA policies to ensure ethical and responsible AI tool use while complying with regulations like FERPA, COPPA, and CIPA.

Student Privacy and Data Security (page 34)

- [graphic] Continue to evaluate the need to balance data demand with student privacy concerns.
- [graphic] Continue to support technology leadership in addressing risks of data breaches and external sharing of student or staff information.

- [graphic] Continue to review implemented software that does not promote student profiling and surveillance.
- [graphic] Provide students with grade-level appropriate instruction in thinking critically about their digital security.

Lead the Vetting of AI Tools (page 34)

- [graphic] Ensure software companies' Data Privacy Agreements (DPAs) are verified.
- [graphic] Validate that companies are COPPA, CIPA, and FERPA compliant.
- [graphic] Continue to insist on encryption and security measures and verify that LEA IT staff are comfortable with these procedures.

Information Technology/Education Technology Leaders (excerpt)

Source: page 35

Implementation of this technology comes with great responsibility in selecting the right tools to safeguard student information.

Security and Privacy

- [graphic] Prioritize security and data privacy.
- [graphic] Implement vetting procedures requiring vendors to notify the district when updates include AI changes are made.
- [graphic] Ensure that the software's security features and encryption comply with regulations (e.g., FERPA, CIPA, and COPPA).
- [graphic] Confirm that the software vendor follows best practices in protecting student data.

Educators: Evaluating Student Work (excerpt)

Source: page 38

When weighing whether to use AI to evaluate student work, educators are asked to consider the following:

- Make sure the student work does not have personally identifiable student information.
- Communicate with students that you will be leveraging AI to evaluate their work.

Students (excerpt)

Source: page 39

Plus, the companies that make AI might collect your personal information without you knowing it!

Think like a detective. You want information from the AI, but you also have questions to ask yourself, such as:

- What kind of information is the AI using to learn?
- Does the application ask for personal information that you would not normally give to a stranger?

Family and Community Members (excerpt)

Source: page 41

This might be a completely innocuous scenario. But consider what you may have agreed to in the disclaimer. What data is the site extracting when it scans your face? You may have provided biometric data not unlike the facial IDs used to unlock many smart phones. Your likeness may be shared with third party sites. Some form of AI is probably used to align the virtual glasses model with your face and is, as far as you can verify, just a neat, useful tool. But is the convenience worth what you may be giving up? How might these considerations apply to other tools you have used?

AI in Education FAQ (excerpt)

Source: pages 44–46

Introduction (page 44)

Alongside the excitement, OSPI cautions about issues such as privacy and equity.

Are There Any Risks or Challenges Associated with AI in Education? (page 46)

- Data privacy and security

What Are the Ethical Considerations of Using AI in Education? (page 46)

- Data privacy and security

AI Integration: Leadership Checklist, Step 2 (excerpt)

Source: page 47

Work with stakeholders within your LEA to identify AI tools that your LEA will support. Consider:

- The data privacy policies of the AI tools under consideration